Belarus-EU Border: Legal framework and status of border crossings

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Summary

The backgrounder provides a comprehensive overview of the legal framework and current status of border infrastructure between Belarus and the EU (Poland, Lithuania, and Latvia) as of March 2026.

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Agreements between Belarus and the EU

In 2020, the European Union and Belarus signed the Visa Facilitation Agreement and the Readmission Agreement, which facilitated the issuance of visas for Belarusian citizens and regulated the procedures for the return of persons residing in the EU without authorisation.

Amid EU sanctions, on 28 June 2021, Belarus announced that it would begin suspending the Readmission Agreement. Minsk characterized this decision as a retaliatory measure against the European Union's unfriendly actions, including the suspension of funding for border security enhancement projects, emphasizing that it cannot «fulfil [its] obligations under this Agreement amid the sanctions and restrictions, imposed by the EU». On 12 November 2021, the EU, in turn, decided to partially suspend the application of the Visa Facilitation Agreement with Belarus. This decision primarily affected representatives of the Belarusian government and state-affiliated entities. On 4 December 2021, the Belarusian side officially confirmed the suspension of the Readmission Agreement, effectively freezing one of the key instruments of migration cooperation between Belarus and the EU.

At the same time, the legal and contractual framework, including in the area of countering illegal migration, between Belarus and its neighbouring countries Poland, Lithuania, and Latvia has been eroding.

Bilateral treaties and agreements on transborder cooperation between Belarus and neighbouring countries

Border management and cross-border cooperation remain within the national competence of EU Member States, although subject to the 2006 Schengen Borders Code. Most of the basic bilateral treaties and agreements on border issues between Belarus and its European neighbours formally remain in force. However, since 2022, Lithuania, Latvia, and Poland have taken measures to legally suspend or effectively terminate the implementation of existing treaties. Belarus's EU neighbours have also paused the processes of updating and improving the existing legal framework.

Belarus and Poland

Belarus and Poland continue to be bound by the 1945 Treaty between the USSR and the Republic of Poland and the 1961 Treaty on the Soviet-Polish State Border. In 1992, Belarus and Poland signed the Agreement on Good Neighbourhood and Friendly Cooperation. In addition to general provisions on the commitment to mutually

beneficial cooperation, including security cooperation, the agreement confirms the existing border between the states and emphasizes the desire of the parties to facilitate the movement of goods, services, labour, and capital across the border.

Another key bilateral agreement is the 1992 Agreement on Border Crossings. The agreement establishes the procedures governing the operation of eight border crossing points, most of which continue to exist to this day. In the same year, Poland and Belarus concluded the Agreement on the Basic Principles of Cross-Border Cooperation, which, *inter alia*, formalized the establishment of an Intergovernmental Coordination Commission on Cross-Border Cooperation.

In 2010, the two countries concluded the Agreement on Local Border Traffic Regime simplifying border crossings for the residents of border areas. In 2019, the Ministries of Defence of Belarus and Poland signed the Agreement on the Air Situation in the Vicinity of the Common State Border and Military Aircraft Flights. The agreement is intended to contribute to a more effective protection of state borders, confidence-building between the states, and enhancing regional security.

Also, between 1992 and 2020, Poland and Belarus signed 19 technical agreements relating to, *inter alia*, railway connections, the opening and operating regimes of border crossing points, the reconstruction of specific crossings, and the management of reservoirs and other transboundary natural waters. Additionally, during this period, trilateral agreements concerning the junction of the state border were concluded with Poland and Lithuania, as well as with Poland and Ukraine.

Termination of treaties and agreements

Neither Poland nor Belarus has denounced or suspended any existing bilateral agreements on border issues; however, their practical implementation has been limited since 2021.[1]

Draft agreements and treaties

At various times, four agreements were in the draft stage: on the demarcation of the state border, on border crossing points, on cooperation in the field of migration, and on the border regime, cooperation, and mutual assistance on border issues.[2] Their development and implementation were suspended amid deteriorating political relations between Minsk and Warsaw.

Belarus and Lithuania

Since 1995, Belarus and Lithuania have concluded several key bilateral agreements forming the legal basis for cross-border cooperation. The 1995 Agreement on Good Neighbourhood and Cooperation (similar in spirit to the agreement between Belarus and Poland) places particular emphasis on cooperation in border areas. The Agreement on the State Border between Lithuania and Belarus, as well as the Agreement on State Border Crossing Points, both signed in 1995, outline the border demarcation procedure and the list of border crossings, including the existing ones.

In 2002, Minsk and Vilnius concluded the Interim Agreement on Mutual Travel of Citizens, setting out the visa regime and the terms of entry and stay for citizens. In 2010, the parties signed the Agreement on the Procedure for Mutual Travel of the Residents of Border Areas. In 2009, the countries concluded the Agreement on the Legal Regime of the Lithuanian-Belarusian Border. Belarus and Lithuania also have technical agreements on border cooperation, such as the 2003 Agreement on the Exchange of Information on the Flights of Aircraft and the 2020 Agreement on the Early Notification of a Nuclear Accident and the Exchange of Information on Nuclear Facilities and Nuclear Activities.

Termination of treaties and agreements

Lithuania unilaterally terminated several agreements:

- The 1996 Agreement on Cooperation in Preventing Violations of Customs Legislation, which governed mutual assistance between customs authorities in detecting and preventing breaches of customs law, regulated the exchange of information, joint inspections, and efforts to combat illicit drug trafficking. The agreement was denounced in 2024.

- The 2006 Agreement on the Principles of Cross-Border Cooperation, which regulates cooperation in the fields of infrastructure, environment, energy, tourism, economy, education, and healthcare, and provides for the establishment of a commission to coordinate joint projects involving local authorities. The agreement ceased to be in force in 2023. According to the Lithuanian minister of the interior, the implementation of this agreement «is not possible in the current geopolitical situation and will not be possible in the near future».

- The 2019 Arrangement on Cooperation between the Customs and Border Authorities of Belarus and Lithuania, aimed at increasing the processing capacity of border crossing points, was unilaterally terminated by Lithuania in 2023.

- The 2020 Memorandum of Understanding on Preparedness for the Pilot Automated Exchange of Customs Information under the EU4Digital project[3] (the Memorandum is practically impossible to implement following the denunciation of the 1996 Agreement on Cooperation in Preventing Violations of Customs Legislation).

Belarus and Latvia

Since the early 1990s, Belarus and Latvia have concluded several key bilateral agreements forming the legal basis for cross-border cooperation. In 1991, the Declaration on the Principles of Good-Neighbourly Relations was signed, proclaiming the general principles governing interaction between the two countries. In 1993, the parties concluded the Agreement on Border Crossing Points, and in 1994, the Treaty on the Establishment of the State Border, which defined the border line and its demarcation order. The two countries are also bound by the 1998 Agreement on Mutual Assistance in Customs Matters.

In 2013, Minsk and Riga concluded an Agreement on the Regime of the Belarusian–Latvian State Border governing the functioning of border crossing points. In 2018, the two countries also signed an Agreement on International Railway Traffic. In addition, since the 1990s, the parties have concluded four sectoral and technical agreements in the field of border cooperation, including agreements on the movement of goods and vehicles, cooperation in emergency situations, and nuclear safety.[4]

Termination of treaties and agreements

Latvia has unilaterally terminated several agreements:

- The 1998 Agreement on the Basic Principles of Cross-Border Cooperation, which defined mechanisms for cooperation between customs authorities in the exchange of information, the prevention, detection, and investigation of violations of customs legislation, including the illicit trafficking of goods, transport controls, and the conduct of joint operational measures. The agreement ceased to be in force in 2022.

- The 2008 Agreement on Mutual Travel of Citizens, which regulated the visa regime and the conditions of entry and stay. The agreement ceased to be in force in 2023. In this context, Latvia suspended the issuance of visas to Belarusian citizens and urged its own citizens not to travel to Belarus.

- The 2010 Agreement on the Simplified Procedure for the Mutual Travel of Residents of Border Areas. Latvia terminated the agreement in 2022.

- The 2016 Agreement between the Ministries of Defence of Belarus and Latvia on Cooperation in the Field of Defence, which defined the legal framework and main areas of bilateral interaction in the fields of security, military policy, arms control, participation in NATO's Partnership for Peace programme, as well as forms of practical and expert cooperation. The agreement ceased to be in force in 2024.[5]

- The 2017 Agreement on the Exchange of Information on Aircraft Flights, which set out procedures for bilateral data exchange between the military command authorities to monitor the use of airspace in the border area and to respond to unidentified or non-compliant flights. The agreement ceased to be in force in 2024.[6]

Draft agreements and treaties

Belarus proposed to Latvia the development of a new bilateral agreement to replace the Agreement between the Ministries of Defence on Cooperation in the Field of Airspace terminated in 2024. However, Latvia has not yet responded to this proposal.[7]

Operational status of border crossing points in 2026

Belarus's border with EU countries is approximately 1,250 km long: with Poland – 398.6 km, with Lithuania – 678.8 km, and with Latvia – 172.9 km. As of 2026, the status of the border crossings for road transport at Belarus–EU borders is as such:

Latvia

1. Urbany-Silene – closed as of 2023 on Latvia's initiative for security reasons.

2. Grigorovshchina-Pāternieki – partially open; since 2024, restrictions have been imposed by Latvia due to the migration situation and sanctions related to the Russia–Ukraine war.

Lithuania

1. Kamennyy Log-Medininkai – open; crossing was restricted in autumn 2025 on Lithuania's initiative due to the weather balloons problem.

2. Benyakoni-Šalčininkai – open; was temporarily closed in autumn 2025 on Lithuania's initiative due to a weather balloon issue.

3. Kotlovka-Lavoriškės – closed as of 2024 on Lithuania's initiative, citing national security risks, smuggling, and violations of international sanctions.

4. Vidzy-Tverečius – closed as of 2023 on Lithuania's initiative for security reasons, including amid reports of the presence of the Wagner PMC on the Belarusian territory.

5. Privalka-Raigardas – closed as of 2024 on Lithuania's initiative, citing national security risks, smuggling, and violations of international sanctions.

6. Losha-Šumskas – closed as of 2023 on Lithuania's initiative for security reasons, including amid reports of the presence of the Wagner PMC in Belarus.

Poland

1. Brest-Terespol – open; crossing was closed in autumn 2025 due to the *Zapad-2025* exercises.

2. Kozlovichi-Kukuryki – open only for freight transport; crossing was closed in autumn 2025 due to the *Zapad-2025* exercises.

3. Bruzgi-Kuznica Białostocka – open as of autumn 2025; crossing had been unilaterally closed by Poland since 2021 due to the migration situation.

4. Berestovitsa-Bobrowniki – open as of autumn 2025; crossing was closed in 2023 on Poland's initiative due to national security concerns.

5. Peschatka-Połowce – closed as of 2020 on Poland's initiative due to the COVID-19 pandemic.

6. Domachevo-Sławatycze – closed as of 2020 on Poland's initiative due to the COVID-19 pandemic.

Railway border crossings and local border crossing points

Latvia

On the Belarusian–Latvian border, one railway border crossing remains open: Indra–Bigosovo. However, passenger trains are not permitted to operate through this crossing. All four local (simplified) border traffic points (Hawrylina-Meikšāni, Druya-Piedruja, Lipawka-Vorzovo, and Plyusy-Kaplava) were closed due to the COVID-19 pandemic. According to Riga, there was effectively no need to reopen these points following the termination of the Agreement on the Simplified Procedure for the Mutual Travel of Residents of Border Areas.

Lithuania

Two railway border crossings are open on the Belarusian–Lithuanian border. The Gudogay–Kena crossing handles customs and border control for freight trains, as well as for long-distance passenger trains connecting Kaliningrad with other Russian cities, transiting through Belarus and Lithuania (passengers are not allowed to disembark on the Lithuanian territory). The traffic of freight trains through the Benyakoni–Stasylos railway border crossing has been suspended since 2023 on the initiative of Vilnius, allegedly to combat smuggling; leter, Lithuania continuously referred to the lack of necessary equipment as a reason to not re-open the crossing. The actual reasons for the suspension of the services may have been linked to the cessation of the transportation of Belarusian export cargoes – primarily potash fertilizers – to the port of Klaipėda, as well as transit cargoes from Lithuania to Ukraine, and to the need for Lithuanian Railways to reduce operating costs related to the maintenance of its locomotive fleet and infrastructure. Although media sources refer to Gudogay–Kena as the 'only operational' crossing, Benyakoni–Stasylos is officially listed as open in the EU's official journal.

Passenger train services between Lithuania and Belarus have not resumed since 2020, when they were suspended due to the COVID-19 pandemic.

The local (simplified) border crossing points on the Belarus–Lithuanian border were closed «due to the declared state of emergency» in Lithuania. All seven local border traffic points were closed: Adutiškis, Norviliškės, Krakūnai, Eišiškės, Rakai, Latežeris, and Papelekis. The river crossing at Švendubrė–Privalka is also closed.

Poland

Only three out of the five railway border crossings on the Belarus–Poland border are currently open: Brest–Terespol, Grodno–Kuźnica Białostocka, and Siemianówka–Svisloch. These crossings operate solely for freight traffic.

Due to the increase in the East–West–East and China–Europe freight traffic, it was planned to resume railway freight services through the fourth railway border crossing, Vysoko–Litovsk–Cheremkha, by the end of 2019, with the border crossing being inactive since 1995. Despite statements by the Belarusian Railways about their readiness to formally restore the crossing's operation after modernization in 2019, the final decision to resume traffic remained pending with the Polish authorities.

Passenger rail services were suspended on Poland's initiative due to the COVID-19 pandemic. Subsequently, although the epidemiological restrictions were formally lifted in 2023, and, despite multiple requests by the Belarusian Railways to restore traffic, passenger services have not been resumed.

The local pedestrian and bicycle crossing Belovezha–Pererov was closed on the initiative of Poland due to the COVID-19 pandemic. Since 2020, the Rudawka–Lesnaya river crossing, located on the Augustów Canal, has also been non-operational.

1 According to the Ministry of Foreign Affairs of the Republic of Belarus.

2 As documented in the archives of the Ministry of Foreign Affairs of the Republic of Belarus.

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